

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 17, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

23CV-02672	TD Bank USA, N.A. vs. Patricia Hernandez
------------	--

Order Show Cause Re: Dismissal – Notice of Settlement

Appearance required. On September 26, 2023, Plaintiff filed a Stipulation Agreement indicating conditional settlement with the final payment due approximately March 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

25CV-01716	Wells Fargo Bank, N.A. vs. Vanessa Casorla
------------	--

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Wells Fargo Bank, N.A. is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed April 8, 2026, granting Plaintiff's motion for an order deeming true requests for admission that were propounded to defendant Vanessa Casorla. The Court finds that the complaint states facts sufficient to constitute causes of action for breach of written contract and breach of an implied in fact contract against Defendant and that

Defendant's deemed admissions negate the denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant.

The Court will sign the proposed order and proposed judgment submitted with the moving papers.

25CV-04338 Merco Credit Union vs. Valeria Marin

Claim of Exemption – Valeria Marin

Appearance required for the judgment debtor. The Court notes that a copy of the judgment debtor's claim of exemption has not been submitted to the court by the levying officer.

25CV-04928 JPMorgan Chase Bank, N.A. vs. Lorena A. Anderson

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's unopposed motion for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Lorena A. Anderson is GRANTED. It is undisputed that Defendant has not served a response to Plaintiff's requests for admission. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers. The Court confirms the case management conference scheduled for August 7, 2026, at 8:30 a.m. in Courtroom 9.

25CV-04947 Wells Fargo Bank, N.A. vs. Sandra Baker

Motion for Summary Judgment

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including some of Defendant's responses to Plaintiff's requests for admission and the declaration of plaintiff's Loan Workout Specialist Jason Gil authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its causes of action for breach of written contract and breach of an implied in fact contract, including the principal amount of the debt. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.